

Court No. - 3

Case :- WRIT - C No. - 1872 of 2022

Petitioner :- Bahar Miyan

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Vijay Prakash Singh Kushwaha

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsel for the petitioner and Sri Pawan Kumar Shukla holding brief of Sri Alok Mishra, learned counsel for the respondent No.5.

Grievance of the petitioner is that demand notice dated 27.05.2021 has been issued to the petitioner for Rs.98,504/- without service of any notice either for provisional assessment order or final assessment order as required under Section 126 of the Electricity Act, 2003. He, therefore, submits that the entire proceeding initiated against the petitioner and creation of demand, is in breach of principles of natural justice.

Learned counsel for the respondent No.5 prays for and is granted a week's time to file counter affidavit in which the respondent No.5 shall specifically give details of issuance of notices and service of provisional assessment order and final assessment order upon the petitioner and also file proof of service along with the counter affidavit.

Put up as a fresh case before the appropriate bench on 17.02.2022.

Order Date :- 10.2.2022

NLY

Court No. - 2

Case :- WRIT - C No. - 1872 of 2022

Petitioner :- Bahar Miyan

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Vijay Prakash Singh Kushwaha

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Ajai Tyagi,J.

None present.

List on 4.5.2022.

Order Date :- 25.2.2022

Mukesh

Court No. - 3

Case :- WRIT - C No. - 1872 of 2022

Petitioner :- Bahar Miyan

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Vijay Prakash Singh Kushwaha

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Case called out. None appears for the petitioner.

Put up as a fresh case before the appropriate Bench on 6.7.2022.

In the meantime, petitioner may file rejoinder affidavit.

Order Date :- 31.5.2022

A. V. Singh

Court No. - 3

Case :- WRIT - C No. - 1872 of 2022

Petitioner :- Bahar Miyan

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Vijay Prakash Singh Kushwaha

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents, and Shri Alok Mishra, learned counsel for all the respondent no.5.

2. This writ petition has been filed praying for the following reliefs :

"A. Issue a writ, order or direction in the nature of writ of certiorari for quashing a demand notice dated 27.5.2021, issued by the respondent No.5.

B. Issue a writ, order or direction in the nature of writ of certiorari for quashing a recovery certificate dated 6.7.2021, issued by the respondent No.5 (Annexure No.-7).

C. Issue a writ, order or direction in the nature of writ of certiorari for a recovery proceeding against the petitioner in pursuance of demand notice dated 27.5.2021 and recovery certificate dated 6.7.2021 issued by respondent no.5.

D. Issue a writ, order or direction in the nature of writ of mandamus commanding to respondents authority to stay the recovery proceeding against the petitioner in pursuance of a demand notice dated 27.5.2021 and recovery certificate dated 6.7.2021 issued by respondent no.5."

3. Learned counsel for the respondent no.5/Executive Engineer states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005

before the respondent no.5 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.5 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 6.7.2022

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